ANDREW BOWEN
versus
TAKTA INVESTMENT (PRIVATE) LIMITED
and
GERALD SAIDI

HIGH COURT OF ZIMBABWE
TAKUVA J
HARARE, 20 June and 19 November 2025

A Kadye, for the applicant
B Magogo, for the first respondent
No appearance, for the second respondent

Court Application for Rescission of Court Order

TAKUVA J: This is an application for rescission of judgment brought by the applicant, in terms of Rule 29(1)(a) of the High Court Rules, 2021. The order sought to be rescinded was granted by this Court on 31 July 2024, under Case No. HCH 2903/24, in which the first Respondent, Takta Investments (Private) Limited, obtained an eviction order against the Applicant. The following order is sought;

> 1. "Application for rescission of the order granted by the court be and is hereby granted.
> 2. The court order granted under case number HCH 2903/24 be and is hereby rescinded.
> 3. The 1st Respondent shall pay Applicant's costs of suit on a Legal Practitioner and Client scale."

The Applicant contends that he was not in wilful default and that the Court Order was erroneously sought and granted in his absence. The Respondent opposes the application and prays for its dismissal with costs on the higher scale.

BACKGROUND FACTS

The Applicant avers that he was contracted by Atticus (Private) Limited as an independent contractor to develop a piece of land described as Stand 2130 Marlborough Township, measuring 109.6556 hectares ("the property"). He further asserts that Atticus is the lawful owner of the property, having allegedly purchased it from Rusununguko Holdings (Private) Limited, and that a Deed of Transfer No. 1244/2015 was registered in its favour.

He also relies on a Certificate of No Present Interest issued by the Ministry of Lands, Agriculture, Fisheries, Water and Rural Development, and a letter from the Office of the President and Cabinet, which urged Atticus to commence development in consultation with the Zimbabwe National Defence University.

The Applicant's explanation for default is that the eviction application was served on his foreman, who allegedly had the papers taken from him by army personnel. He maintains that he only became aware of the proceedings on the morning of 31 July 2024, after which he attended Court but found that a default judgment had already been granted.

THE RESPONDENT'S POSITION

The first Respondent disputes every material averment by the Applicant. It argues that:

The title deed (Annexure B) relied upon by the Applicant is a forgery and not registered with the Registrar of Deeds. The purported conveyancer, Mr. John Mugogo, has disowned the document and confirmed that his signature was forged. Rusununguko Holdings (Private) Limited, alleged to have sold the property to Atticus, has also denied ever owning or transferring the property to Atticus. The Registrar of Deeds confirmed that the only authentic title deed registered in respect of the property is in the name of the first Respondent, Takta Investments (Private) Limited. It is therefore the Respondent's case that Atticus (Pvt) Ltd has no title, rights, or interest in the property, and consequently, could not lawfully contract the Applicant to develop it. The Respondent further contends that the Applicant was properly served with the eviction application, that his explanation for default is not *bona fide*, and that his conduct demonstrates wilful default. The Respondent alleges that the Applicant is part of a fraudulent scheme designed to unlawfully dispossess the first Respondent of its property and notes that criminal proceedings have been instituted against him for trespassing.

ISSUES FOR DETERMINATION

The issues that fall for determination are:

1. Whether the Applicant was in wilful default.
2. Whether the Court Order in Case No. HCH 2903/24 was erroneously sought and granted.
3. Whether the Applicant has shown a bona fide defence on the merits.

THE LAW

The principles governing rescission of judgments under Rule 29(1)(a) are settled. An applicant must show that the default was not wilful or due to gross negligence, that he has a *bona fide* defence on the merits; and that there is a reasonable explanation for the default. In the case of *Zinondo* v *CAFCA Limited* SC 64/17 where at p 4, the Court stated:

> "In an application for rescission of a default judgment the court must be satisfied that there is good and sufficient cause to rescind the order. In *Makoni* v *CBZ Bank Limited* HH-357-16, CHITAKUNYE J quoted the case of *Stockil* v *Griffiths* 1992 (1) ZLR 172 (S) at 173D-F wherein GUBBAY CJ aptly noted that: -
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> 'The factors which a court will take into account in determining whether an applicant for rescission has discharged the onus of proving "good and sufficient cause", as required to be shown by Rule 63 of the High Court of Zimbabwe Rules 1971, are well established. They have been discussed and applied in many decided cases in this country. See for instance, *Barclays Bank of Zimbabwe Ltd* v *CC International (Pvt) Ltd* S-16-86 (not reported); Roland and Another v McDonnell 1986 (2) ZLR 216(S) at 226E-H; *Songore* v *Olivine Industries (Pvt) Ltd* 1988(2) ZLR 210(S) at 211C-F. They are: (i) the reasonableness of the applicant's explanation for the default; (ii) the *bona fides* of the application to rescind the judgement; and (iii) the *bona fides* of the defence on the merits of the case which carries some prospect of success. These factors must be considered not only individually but in conjunction with one another and with the application as a whole.'"

APPLICATION OF THE LAW TO THE FACTS

1. Whether the default was wilful

The Applicant alleges that service was effected on his foreman, who was then prevented from delivering the papers by army personnel. However, the supporting affidavit from the said foreman, Elijar Brown, fails to specify the date of service, the identity of the alleged army personnel, or the circumstances under which the documents were taken. Similarly, the affidavit from Peter Bowen (the Applicant's father) is vague and lacks critical details, such as the name of the colleague who informed him of the case. More importantly, the Applicant admits that he became aware of the order on 31 July 2024, yet only acted on 30 August 2024, a full month later. No reasonable explanation is provided for this delay. This inaction is inconsistent with the conduct of a diligent litigant and points to wilful default.

2. Whether the judgment was erroneously sought and granted

A judgment is said to be erroneously granted where there was some procedural or factual error apparent on the record. In this case, there is no evidence that the Court was misled. The

Applicant was properly cited in the eviction application as the party in occupation of the property. Whether his claim to be acting under Atticus (Pvt) Ltd is valid or not is irrelevant to the procedural regularity of the initial proceedings. Thus, the order was not erroneously sought or granted.

3. Whether the Applicant has a *bona fide* defence

The Applicant's purported defence is premised on the alleged ownership of the property by Atticus (Pvt) Ltd. However, the Respondent has produced overwhelming evidence showing that the title deed relied upon by Atticus is fraudulent.

This evidence includes: an affidavit from the purported conveyancer denying authorship of the deed; an affidavit from the alleged seller denying transfer; and official confirmation from the Registrar of Deeds that the only valid title deed is in the name of the 1st Respondent.

In the face of such evidence, the Applicant cannot claim any lawful authority to occupy the property. The alleged contract with Atticus (Pvt) Ltd, even if it existed, would confer no rights, as one cannot transfer rights one does not have.

4. Prospects of Success on the Merits

The Court must finally consider whether the Applicant has any reasonable prospects of success in the main matter were the judgment to be rescinded. This inquiry overlaps with, but is distinct from, the question of a *bona fide* defence. It requires the Applicant to demonstrate that his defence is not only genuine but also carries some likelihood of success if the matter proceeds to trial.

The Applicant's case is premised on his alleged contractual engagement by Atticus (Private) Limited to develop the property, which he claims belongs to that company. His continued occupation of the property, and his opposition to the eviction order, therefore depend entirely upon the validity of Atticus (Pvt) Ltd's purported ownership. However, the 1st Respondent has placed before the Court incontrovertible evidence that Atticus (Pvt) Ltd never held lawful title to the land. The Deed of Transfer No. 1244/2015 relied upon by the Applicant has been confirmed by the Registrar of Deeds as non-existent in the Deeds Registry. The alleged conveyancer, Mr. John Mugogo, has sworn an affidavit denying ever preparing or signing that deed, and the alleged seller, Rusununguko Holdings (Pvt) Ltd, has

categorically denied transferring the property to Atticus. On the other hand, the 1st Respondent has produced the authentic title deed reflecting its undisputed ownership of Stand 2130 Marlborough Township.

It follows that the Applicant, deriving his supposed rights from Atticus (Pvt) Ltd, cannot assert any lawful basis for his continued occupation of the first Respondent's property. His reliance on a forged and invalid title deed deprives him of any protectable or arguable right. As was stated in *Setlogelo* v *Setlogelo* 1914 AD 221 at 227:

> "The requisites for the right to claim an interdict are well known. A clear right must be established; there must be an injury actually committed or reasonably apprehended; and the absence of any other satisfactory remedy must be shown."

This passage was cited with approval in *Airfield Investments (Pvt) Ltd* v *Minister of Lands & Others* 2004 (1) ZLR 511 (S) at 517E–F, where the Supreme Court emphasised that without proof of a clear or *prima facie* right, no interdict or protective relief can be granted. Also see *Econet (Pvt) Ltd* v *Telecel Zimbabwe (Pvt) Ltd* 1998 (1) ZLR 149 (H) at 153E–F. A party cannot obtain protection or rescission to reopen a case when no lawful or protectable right exists.

In the present matter, the Applicant lacks any clear right to occupy or develop the property. His occupation is unlawful, and any perceived injury arising from his removal cannot be protected by the courts. Even if rescission were granted, the result would remain unchanged, as the underlying claim is hopeless in law. The Applicant therefore has no reasonable prospects of success on the merits.

Accordingly, the Applicant has no *bona fide* defence on the merits.

DISPOSITION

The Applicant has failed to demonstrate that he was not in wilful default; that the judgment was erroneously granted; or that he has a bona fide defence. His explanation for default is unconvincing and riddled with inconsistencies. His claim of right to occupy the property is based on a fraudulent and invalid title deed. This application is therefore without merit, not *bona fide*, and an abuse of court process intended to delay enforcement of a lawful judgment.

Accordingly, it is ordered that:

1. The application for rescission of judgment under Case No. HCH 2903/24 be and is hereby dismissed.

2. The Applicant shall pay the first Respondent's costs on an a legal practitioner and client scale.

TAKUVA J:…….

Mlotshwa Solicitors Legal, applicant's legal practitioners
Chambati Mataka & Makonese Attorneys At Law, first respondent's legal practitioners